

24STCV13290 24STCV13290

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-31

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Case Number: 24STCV13290 Hearing Date: August 31, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Michelle Tejeda.

;

Plaintiff,

vs.

Alfonzo Perez Special

Educational Center

, et al.,

Defendants.

Case No.:

24STCV13290

Hearing Date:

August 31, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer
to Complaint

MOVING PARTY: Defendant Los Angeles Unified School
District

RESPONDING PARTY: Plaintiff Michelle Tejeda, by and through her
Guardian ad Litem Aracely Polanco Salguero

Demurrer to
Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this demurrer.

DISCUSSION

Defendant Los
Angeles Unified School District ("Defendant") demurs to the complaint filed by
plaintiff Michelle Tejeda, by and through her Guardian ad Litem Aracely Polanco
Salguero ("Plaintiff") in its entirety.

The court
sustains the demurrer to the Complaint in its entirety as time-barred by the
two-year statute of limitations. (Code Civ. Proc., § 430.10, subd. (e).)

Claims for
personal injury and property damage against a public entity must ordinarily be
presented to that entity within six months of accrual of the claim. (Gov. Code,
§ 905.) All other claims must be presented within a year. (Id.) When a
claim that must be presented is rejected, by action or inaction, by the public

entity and the entity fails to give written notice, the claim is subject to a two-year statute of limitations. (Gov. Code, § 945.6, subd. (a)(2).)

Plaintiff alleges

claims for negligence, failure to discharge a mandatory duty, and violation of the Dependent Adult Civil Protection Act stemming from injuries sustained in a fall on May 4, 2022. (Complaint ¶ 8.) Plaintiff presented her claim to Defendant on May 25, 2022. (Complaint ¶ 12.) Plaintiff received no formal rejection of the Complaint. (Complaint ¶ 13.) By operation of law, Plaintiff's complaint is subject to a two-year statute of limitations, which placed the deadline to file this action on May 4, 2024. The Complaint was not filed until May 28, 2024, twenty-four days past the deadline.

The court does

not find that the equitable tolling doctrine applies because nothing within the four corners of the Complaint nor judicially noticeable material establishes reasonable and good faith conduct on Plaintiff's part. (Addison v. State (1978) 21 Cal.3d 313, 319 [elements for application of equitable tolling doctrine].) Plaintiff's assertion that the late filing of the Complaint was the result of "an administrative error" is extrinsic to the pleadings and insufficient to demonstrate reasonable and good-faith conduct. (Opposition p. 8:23.)

The burden is on

the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm

Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy

that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiff has not

articulated the facts that could be alleged to demonstrate that the Complaint falls within the statute of limitations or that the statute of limitations should be tolled and therefore sustains the demurrer without leave to amend.

ORDER

The court

SUSTAINS defendant Los Angeles Unified School District's demurrer to the complaint filed by plaintiff Michelle Tejeda, by and through her Guardian ad Litem Aracely Polanco Salguero without leave to amend.

The court orders
that defendant Los Angeles Unified School District is dismissed from this
action. (Code Civ. Proc., § 581, subd.
(m).)

The court orders defendant
Los Angeles Unified School District to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Robert B. Broadbelt III

Judge of the Superior Court